

10:00 AM

Line 10

26-CLJ-04775 BOUNCE AI, INC VS FOTOFILI NAMOA

BOUNCE AI, INC
FOTOFILI NAMOA

ROBERT SCOTT KENNARD
PRO SE

Defendant's Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Defendant Fotofili Namoa's Motion to Compel Arbitration, filed July 17, 2025, is DENIED.
(Code Civ. Proc. Sect. 1280 et. seq.)

This is a collection matter on a promissory note for a claimed debt of \$22,337.10. After service of the Summons and Complaint, Defendant filed the present Motion to Compel Arbitration.

Governing law.

Code Civ. Proc. § 1281.2, states, in part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action ... with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action ... includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. ...

...

If the court determines that there are other issues between the petitioner and the respondent which are not subject to arbitration and which are the subject of a pending action ... between the petitioner and the respondent and that a determination of such issues may make the arbitration unnecessary, the court may delay its order to arbitrate until the

determination of such other issues or until such earlier time as the court specifies.

If the court determines that a party to the arbitration is also a party to litigation in a pending court action ... with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action ...; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action ... pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action ...

The parties' burdens.

Where a party has filed a motion to compel arbitration, the trial court must determine in a summary proceeding whether an “agreement to arbitrate the controversy exists.” (Code Civ. Proc., §§ 1281.2, 1290.2; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412–413.) “Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (*Rosenthal*, at p. 413; accord, *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The party opposing the motion bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236; *Ruiz v. Moss Bros. Auto Grp.* (2014) 232 Cal.App.4th 836, 842–43.) The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination. (*Engalla v. Permanente Medical Group, Inc.*, *supra*, at p. 972.)

“General principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Although public policy favors arbitration, that policy “does not extend to those who are not parties to an arbitration agreement.” (*Theresa D. v. MBK Senior Living LLC, supra*, 73 Cal.App.5th at 24; *Young v. Horizon W., Inc.* (2013) 220 Cal.App.4th 1122, 1128 [“Even the strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement or who have not authorized anyone to act for them in executing such an agreement.”])

California applies a three-step process under Code of Civil Procedure section 1281.2 to determine whether an arbitration agreement exists. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164–165 (*Gamboa*).) At the first step, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy and can meet its burden by attaching to the petition or motion a copy of the arbitration agreement purporting to bear the opposing party’s signature. (*Id.*, at p. 165.) If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then the opposing party bears the burden of producing evidence to challenge the agreement at the second step. (*Ibid.*, citing *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) If the opposing party meets

its burden of producing evidence, then the moving party must establish with admissible evidence a valid arbitration agreement between the parties in the third step. (*Ibid.*)

Defendant does not meet their initial burden of showing a valid arbitration agreement.

Defendant's motion and declaration, fails to attach a copy of any written agreement with an arbitration clause as signed by the parties. As Defendant has not met its initial burden, the motion fails at step one, and the Court is not required to proceed to steps two or three.

Therefore, the motion to compel arbitration is DENIED. Defendant is to file its responsive pleading to the Complaint within ten days of service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
